

02:00 PM **LINE 7**

25-CIV-04781

YAZMIN SANCHEZ VS. MERCEDES-BENZ USA, LLC

YAZMIN SANCHEZ
MERCEDES-BENZ USA, LLC

LUIS SERRANO
MEHGAN GALLAGHER

Motion for Judgment on the Pleadings

TENTATIVE RULING:

Defendant Autobahn, Inc.’s Motion for Judgment on the Pleadings is **GRANTED**.

As a preliminary matter, defendant Autobahn, Inc. has not complied with subdivision (a)(3) of Code of Civil Procedure section 439. The statute requires a party moving for judgment on the pleadings to be accompanied by a declaration stating either that the parties met and conferred as required or that the opposing party failed to respond or otherwise meet and confer. (*Ibid.*) The declaration submitted with the motion merely states that Autobahn’s counsel “attempted to communicate” with plaintiff Yasmin Sanchez’s counsel. (Feb. 13, 2026 Declaration of Meghan Gallagher, ¶ 2.) This is insufficient. Autobahn and its counsel are ordered to full comply with the Code of Civil Procedure in connection with all future pleadings or motions.

As for the merits, Autobahn moves for judgment on the pleadings as to the Complaint’s third cause of action, which is based on Autobahn’s purported negligence in storing, preparing, and repairing Sanchez’s vehicle. (June 25, 2025 Complaint, ¶¶ 49–51.) “The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917, quotation marks omitted.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) As with a demurrer, a complaint’s “contentions, deductions, or conclusions of law” must be disregarded on a motion for judgment on the pleadings. (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 698.)

In an attempt to plead the third element — an injury proximately caused by the breach — the Complaint alleges, “[Autobahn’s] negligent breach of its duties owed to [Sanchez] was a proximate cause of [Sanchez’s] damages.” (Complaint, ¶ 52.) This is a pure legal conclusion: damages are merely the *money* to be paid in compensation for an injury, and there is no allegation of what actual injury — whether to Sanchez’s person or property — was caused by Autobahn’s purported negligence. (Black’s Law Dict. (12th ed. 2024) Damages; see Complaint, *passim*.)

Accordingly, the Complaint fails to state facts sufficient to constitute a cause of action for negligence, and the motion is granted. As this will be Sanchez's first opportunity to amend in response to a ruling identifying this defect, leave to amend is granted as a matter of fairness. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant Autobahn, Inc.'s counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 8**

25-CIV-05705

STEPHEN WEST VS. BRIANNA EYEN

STEPHEN WEST
BRIANNA EYEN

ELIJAH MARCUS UNDERWOOD
MISSY M CORNEJO

Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

On April 22, 2026, the court set June 24, 2026 as the date of the hearing on plaintiff Stephen West's "Motion to Determine Value and Send Buy-Out Notice." Neither party has submitted any papers setting forth the appraiser's valuation of the property. Accordingly, the hearing is **VACATED**.
